

**In the Interest of K.C.G., a child under seventeen years of age.
B.L.M., and C.T.A.M., and Jasper County Juvenile Office,
Petitioners-Respondents,
v. M.P.G., Respondent-Appellant.**

No. SD 38180 — Missouri Court of Appeals, Southern District

Decided: March 25, 2024

Panel: Growcock, J. (auth.); Sheffield, J. (concur); Borthwick, J. (concur)

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SOURCE: FindLaw — Missouri Court of Appeals, Southern District

CASE: In the INTEREST OF: K.C.G., a child under seventeen years of age. B.L.M., and C.T.A.M., and Jasper County Juvenile Office, Petitioners-Respondents, v. M.P.G., Respondent-Appellant.

DOCKET: No. SD 38180

DECIDED: March 25, 2024

PANEL: JENNIFER R. GROWCOCK, J. (auth.); MARY W. SHEFFIELD, J. (concur); BECKY J.W. BORTHWICK, J. (concur)

COUNSEL: Kristoffer R. Barefield (Springfield, MO) for Appellant; Lindsey R. Drake (Neosho, MO) for Respondents.

FULL TEXT OF PUBLISHED OPINION

M.P.G. ("Father") appeals the judgment of the Circuit Court of Jasper County ("trial court") terminating his parental rights with respect to a minor child, K.C.G. ("Child"). In one point on appeal, Father argues the trial court erred by entering its judgment because there is no evidence in the record he was properly served with a summons in compliance with sections 211.453.2 and 211.462.2. Father failed to preserve his claim on appeal, and we decline to review it under plain error review.

FACTUAL BACKGROUND AND PROCEDURAL HISTORY

On March 9, 2021, the Juvenile Division of the Circuit Court of Jasper County ("juvenile court") found Child to be without proper care, custody, and support after Child, being two years old at the time, tested positive for methamphetamine. The juvenile court ordered Child to remain in foster care, with the case goal being reunification of the family. As the Children's Division (the "Division") attempted to reunify the family, Father refused to work on a case plan or cooperate with the Division, and he further refused to take two separate drug tests in January and April of 2021. Father also reported that he was self-employed but provided no documentation of income, did not provide documentation of attending or completing a drug treatment program, and he had a pending felony charge for possession of a controlled substance. On April 11, 2022, the juvenile court issued a judgment modifying the case goal to termination of parental rights and adoption.

B.L.M. and C.T.A.M. (collectively, "Adoptive Parents") filed their petition to terminate Father's parental rights over Child and to adopt Child on September 26, 2022. The trial court appointed a special process server to serve Father with the Adoptive Parents' petition, and a Juvenile Summons for Personal Service Outside the State of Missouri was issued for Father at an address in Baxter Springs,

Kansas. The special process server served the summons on Father by personal service at a Joplin, Missouri address on October 7, 2022, as evidenced by the returned summons. The summons included the following notice:

You have the right to have an attorney present to assist you at all court hearings, or you may waive your right to an attorney. If you do desire to be represented by an attorney, you should begin now to obtain legal counsel. If you cannot afford to pay an attorney and you wish to have an attorney to represent you, the court has the power to appoint an attorney to represent you, without charge. However, in the event the court does appoint a public defender or other appointed counsel for the juvenile, the court may, after notice and hearing, order the custodian to make reimbursement for all or part of the cost of representation of the juvenile. You should make known to the court your desire to have an attorney appointed for you.

On October 25, 2022, Father filed a self-styled "Motion to Intervene[.]" a pro se answer to Adoptive Parents' petition, and an application for a court-appointed attorney. Father's pro se answer stated he "acknowledge[d] receipt of summons and [Adoptive Parents'] Petition for Parental Rights" and that he was requesting counsel. Also on October 25, 2022, the trial court held a counsel status hearing pursuant to section 211.455. The trial court determined that service of process had not been obtained upon Mother and extended the time for service, making no mention of whether service was obtained on Father. The trial court appointed counsel for Father the next day, October 26, 2022.

The termination of Father's parental rights proceeded to a bench trial on June 27, 2023, where Father appeared in person and with appointed counsel. Father testified at trial, and, when his counsel asked whether he had ever been served in the case, he said, "I did get served I think through – well, I got served on the TPR." After considering the evidence presented, the trial court issued its amended judgment terminating Father's parental rights on August 1, 2023.

The trial court terminated Father's parental rights on the bases of abuse or neglect, failure to rectify harmful conditions, and parental unfitness under subdivisions (2), (3), and (5) of section 211.447.5, respectively; and it found termination of Father's parental rights was in Child's best interests. In its judgment, the trial court recounted the evidence of Father's chemical dependency which prevented him from consistently providing the necessary care for Child, failure to provide Child with adequate care despite being physically and financially able to do so, and refusal to participate in services offered by the Division. It also noted Father was "served on October 7, 2022, by personal service at [a Joplin, MO address]." Neither Father nor Adoptive Parents filed a post-trial motion for a new trial following the trial court's judgment, and Father's timely appeal followed.

PRESERVATION OF ERROR

[See FindLaw page for full preservation-of-error discussion.]

CONCLUSION

Because Father failed to preserve his claimed error and we decline plain error review, the trial court's judgment terminating Father's parental rights with respect to Child is affirmed.

KEY FACTUAL ASSERTIONS IN OPINION (FOR CROSS-REFERENCE)

A. Initial removal — "March 9, 2021 ... Child, being two years old at the time, tested positive for methamphetamine." B. Case goal — "the case goal being reunification of the family." C. Father's cooperation — "Father refused to work on a case plan or cooperate with the Division." D. Drug tests — "he further refused to take two separate drug tests in January and April of 2021." E. Self-employment — "Father also reported that he was self-employed but provided no documentation of income." F. Drug treatment — "did not provide documentation of attending or completing a drug treatment program." G. Criminal charge — "he had a pending felony charge for possession of a controlled substance." H. Case-goal change — "On April 11, 2022, the juvenile court issued a judgment modifying the case goal to termination of parental rights and adoption." I. Service — "special process server served the summons on Father by personal service at a Joplin, Missouri address on October 7, 2022, as evidenced by the returned summons" (issued for Baxter Springs, KS). J. Filing of returned summons — "Though the returned summons reflected service on Father on October 7, 2022, ... it was not filed with the trial court until December 18, 2023, after Father filed his notice of appeal." [n.3] K. Adoptive Parents' attempted filing — "Adoptive Parents attempted to file the returned summons on October 18, 2022, but they instead mistakenly filed a service return for an unrelated juvenile case. A clerk for the juvenile court deleted the mistaken filing." [n.3] L. Counsel status hearing — "On October 25, 2022 ... The trial court determined that service of process had not been obtained upon Mother and extended the time for service, making no mention of whether service was obtained on Father." M. TPR ruling — "subdivisions (2), (3), and (5) of section 211.447.5" (abuse/neglect, failure to rectify, parental unfitness).

[END]